

the Court declines to tax these costs.

Other Costs

Honda seeks to task costs related to specially appearing attorneys on two occasions, for \$75.00 each. While Oilva argues that these costs are less than would be incurred by attorneys appearing on their own behalf, Honda is correct that these are properly categorized as attorney's fees, not costs, and they will be taxed.

Honda also seeks to strike the \$920.00 sought for the mediation both because the parties, in agreeing to the mediation, agreed to bear their own costs, and because the mediation had multiple cases. On the first issue, the Court does not see an initial agreement to split the cost of mediation as precluding the cost as recoverable at the close of litigation. On the second issue, the Court agrees that Plaintiff may not gain the benefit of splitting a mediation fee with another case but recover the entire amount in a single litigation. That the invoice identified this case is insufficient to carry Plaintiff's burden. The Court will tax half of the \$920.00.

The Court therefore will tax \$760 of the costs memorandum.

7. 9:00 AM CASE NUMBER: C25-02093
CASE NAME: YOSALIN GONZALEZ VS. WESTERN STONE & METAL CORP.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MICHAEL FREIMAN, ESQ.**
FILED BY: GONZALEZ, YOSALIN
TENTATIVE RULING:

The Court has reviewed the Motion and it is **granted**.

8. 9:00 AM CASE NUMBER: C25-02588
CASE NAME: COOL BEANS ENTERTAINMENT LLC, VS. CHRISTINE SORIANO
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: COOL BEANS ENTERTAINMENT LLC,
TENTATIVE RULING:

Counsel to appear (in person or by Zoom).

This is a Preliminary Injunction motion centering on control and operation of several residential care facilities for elders. What caught the Court's attention is the point that both sides are proposing the same structural solution – namely, the hiring of professional third-party management companies to run the facilities (and their immediate finances) pending litigation.

At the June 25, 2026, hearing the Court directed the Parties to provide an update of their Meet and Confer Process by July 16, 2026.

The Parties on July 16, 2026, submitted a joint statement which provided that the Parties were actively evaluating potential options, making progress in their discussions, and would provide a

further status update in one on July 23, 2026.

On July 23, 2026, Plaintiff submitted an update stating that no resolution has been reached between the Parties and requests the Court to rule on the TRO.

The Parties are ordered to appear to provide the Court an update on the ongoing discussions and to discuss availability for a new TRO hearing date.

The Court again extends an invitation to the DSS and the Lenders, if they see fit, to involve themselves directly in this litigation, by formal intervention if appropriate, or at least by friend-of-the-court input.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: TO RESCIND, BASED ON CRIME, ORDER**
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff's Demand to Rescind Crimes Based Order.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as a motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default and Plaintiff's motion to strike the declaration.

Analysis

Plaintiff's motion consists of a single page with 19 pages of attached documents. The 'motion' references several Penal Code sections but does not explain what they are or how they apply to these civil proceedings. In fact, the whole 'motion' is an incoherent rambling with no discernable focus.

It appears to ask the Court to rescind its June 18, 2026, Order and uphold the earlier default. In other words, it appears to be a motion for reconsideration.

The Court may not entertain a motion for reconsideration absent a showing of new or different facts,